

Multiple Choice (10 marks)

1. Under Article III, federal judicial power extends to which of the following kinds of cases?
 - (a) interpretation of treaties
 - (b) interpretation of admiralty laws
 - (c) disputes between states and foreign citizens
 - (d) all of the above
2. In most states, the division of homicide into degrees is distinguished according to which of the following?
 - (a) the causal relationship between the defendant's act and the resulting death.
 - (b) the attendant circumstances surrounding the death.
 - (c) the nature of the act causing the death.
 - (d) the defendant's state of mind at the time the killing was committed.
3. The President may appoint which of the following with the advice and consent of the Senate?
 - (a) Ambassadors
 - (b) public ministers and consuls
 - (c) justices of the Supreme Court
 - (d) all of the above
4. A merchant's irrevocable written offer (firm offer) to sell goods
 - (a) Must be separately signed if the offeree supplies a form contract containing the offer.
 - (b) Is valid for three months.
 - (c) Is nonassignable.
 - (d) Can not exceed a three-month duration even if consideration is given.
5. A defendant charged with first-degree murder shall be furnished with a list containing names and addresses of all prospective jurors
 - (a) upon court order.
 - (b) upon request.
 - (c) upon request and showing of good cause.
 - (d) under no circumstances.

True / False (10 marks)

Answer True or False

6. True or False: A life tenant must ensure the property is free from all damages caused by third-party actions at all times.
7. True or False: A valid treaty always prevails over a congressional act regardless of the timing of their enactment.
8. True or False: The best evidence rule generally does not apply to collateral matters, public records, or when the document's contents are not in dispute.
9. True or False: An indigent person does not have the Sixth Amendment right to counsel during investigative surveillance.
10. True or False: A warranty of fitness for a particular purpose arises when a seller knows the buyer's specific needs and recommends a product accordingly.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the legal duties owed by a possessor of land to an undiscovered trespasser under common law, specifically addressing the implications of natural conditions on this duty.
12. Discuss the legal principles that determine criminal responsibility in cases where a defendant's actions indirectly lead to a victim's death, using a specific example to illustrate your analysis.

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